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|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>JDF 103</b>                                                                                                                                                                                                                | <b>Eviction Answer</b><br>(Residential Tenancy) |                                                                                             |
| <b>1. Court</b><br><input type="checkbox"/> District <input checked="" type="checkbox"/> County<br>Colorado County: <u>Jefferson</u><br>Mailing Address: <u>Jefferson County Court</u>                                        |                                                 | <div></div> <p><i>This box is for court use only.</i></p>                                   |
| <b>2. Parties to the Case</b><br>Landlord: <i>(Plaintiff)</i> <u>Summit Ridge Property Management, LLC</u><br>v.<br>Tenant: <i>(Defendant)</i> <u>John Doe</u>                                                                |                                                 |                                                                                             |
| <b>3. Filed by</b><br>Name: <u>John Doe</u><br>Mailing Address: <u>4812 W Cedar Avenue</u><br>City: <u>Lakewood</u> St: <u>CO</u> Zip: <u>80226</u><br>Phone: <u>(303) 555-0173</u><br>Email: <u>john.doe.303@example.com</u> |                                                 | <b>4. Case Details</b><br>Number: <u>2024C030123</u><br>Division: _____<br>Courtroom: _____ |

## 5. Background

I submit this Answer under C.R.S. § 13-40-113. I swear or affirm the following is true:

### This Answer Contains

- ☒ Affirmative Defenses.
- ☐ Jury Demand. (Non-refundable fee. Only specific claims can be decided by a Jury)
- ☐ Counter/Cross Claims. (Attach claims, if any.)

## 6. Tenant Information

Do you need an interpreter?      ☐ No.      ☐ Yes, in *(language)* \_\_\_\_\_

I want to attend court events:      ☐ In-person.      ☐ Remotely. *(by phone or web video)*

To ever change how you appear for court events:

- a) Complete form *JDF 105 – Notice about Remote Hearings*.
- b) File at least 48 hours before an event.

If *different* from [Section 3] above, my *(the Tenant's)* contact information is:

Full Name: \_\_\_\_\_

Mailing Address: \_\_\_\_\_

Phone: \_\_\_\_\_ Email: \_\_\_\_\_

Always keep your contact info updated. Use form *JDF 88 – Contact Information Change*.

## 7. Defenses

### Note to Tenant

- a) Review the *Eviction Complaint* to see why the landlord is evicting you.
- b) For each *Cause* the Landlord claimed, check the defenses you plan to present at trial.
- c) Briefly explain each in [Section 8 – Explanation.] You'll present your full case at trial.
- d) This is only a partial list of defenses. Check with a lawyer for which apply to you.

### 7a) Unpaid Rent

Did your landlord raise unpaid rent claims?

- ☐ No. [Skip to Section 7b]
- ☒ Yes. My Defenses are: (Check all that apply and explain in Section 8)
  - ☐ I paid the proper amount of rent due, not the amount the landlord claims.
  - ☐ I tried to pay the full rent due within the cure period, but the Landlord refused.  
C.R.S. § 13-40-104(1)(d).
  - ☐ I paid partial rent to the Landlord **after** they sent me a Demand for Compliance.  
C.R.S. § 13-40-104(1)(d).
  - ☒ **{Affirmative Defense – Unfixed Repairs}** Warranty of Habitability  
Complete and file form *JDF 104 – Unlivable Conditions at Home* with this form.

### 7b) Defenses for Lease Violations

Did your landlord raise lease violation claims?

- ☒ No. [Skip to Section 7c]
- ☐ Yes. My Defenses are: (Check all that apply. Explain in Section 8.)
  - ☐ I did not violate a material condition of the lease.
  - ☐ I did not repeat a violation because the alleged violations are not a part of the same lease term. C.R.S. § 13-40-104(1)(e.5).
  - ☐ **{Affirmative Defense}** If I did violate the lease, it resulted from my disabilities for which I should be granted a reasonable accommodation and allowed to remain a tenant (Federal Fair Housing Act).

### 7c) Defenses for Substantial Violations

Did your landlord raise substantial lease violation claims?

☒ No. [\[Skip to Section 7d\]](#)

☐ Yes. My Defenses are: [\(Check all that apply. Explain in Section 8.\)](#)

☐ I, nor anyone I have invited onto the property, did not: *(all must apply)*

- 1) purposefully and substantially endanger the property or other tenants,
- 2) committed a violent or drug-related felony crime, or
- 3) committed a criminal act that was a public nuisance under law or could result in jail time of 180 days or more.

☐ **{Affirmative Defense}** I did not know, reasonably could have known, or prevented my guest from committing a substantial violation. But I did immediately notify law enforcement. [C.R.S. § 13-40-107.5\(5\)\(b\)\(II\).](#)

### 7d) Defenses for Ending Tenancy (No-Fault)

Are you being evicted before the end of your lease term?

☐ Yes. [\[Skip to Section 7e\]](#)

☒ No, my landlord is not renewing my lease.

My Defenses are: [\(Check all that apply. Explain in Section 8.\)](#)

☒ The landlord is retaliating against me for reporting a warranty of habitability violation. [C.R.S. § 38-12-509\(1\).](#)

☐ **{Affirmative Defense}** The landlord didn't follow the process or qualify for a No-Fault Eviction. [\(Explain how or why in Section 8\).](#) [C.R.S. § 38-12-1306.](#)

### 7e) General Defenses

My defenses are: [\(Check all that apply. Explain in Section 8.\)](#)

☐ The Landlord wants attorney or other fees not allowed under the lease or law.

☒ The Landlord wants illegal or unenforceable late and other fees.

☐ I was served a *Demand for Compliance* but not given the correct cure period of:

☐ 5-10 days (normal). [C.R.S. § 13-40-106.](#)

☐ 30 days (federally backed mortgage). [15 U.S.C. § 9058\(a\)\(2\).](#)

**Affirmative Defenses:**

- ☐ Violation under the Unfair Housing Act C.R.S. § 13-40-113(2.5).

The landlord violated one of the provisions of the Unfair Housing Act under C.R.S. §§ 24-34-501 to 509. (Explain which provision and how it was violated in Section 8).

*Examples Include:      Discrimination based on gender identity, marital/familial status,  
national origin, race, religion, sex, sexual orientation ...*

- ☐ Failure to Attend Mandatory Mediation C.R.S. § 13-40-110(d).

*All (1 through 4) must apply:*

- 1) I'm enrolled in one of the following benefits programs: *(must check at least one)*

- ☐ Supplemental Security Income      ☐ Social Security Disability Insurance  
☐ Cash Assistance through the Colorado Works program. And,

- 2) I notified the landlord, in writing, that I received that benefit. And,

- 3) The landlord has or is believed to have six or more rental units. And,

- 4) The landlord failed to schedule and attend mediation before filing the case.

**7f) List All Other Defenses (if any)**

*(Examples may include issues of standing, service, or notice. Be sure to explain in Section 8.)*

- 1) \_\_\_\_\_  
2) \_\_\_\_\_

**8. Explanation**

Briefly explain your side of the situation. You'll present your full argument at trial.

*How do the defenses you checked apply? What facts did the Complaint get wrong?*

1. Failure to maintain premises / necessary repairs: The furnace and refrigerator have been broken since February and the landlord has not made repairs despite written requests.

2. Disputed rent amount claimed: The ledger includes unauthorized late fees and a charge for a month I already paid in full.

3. Retaliation for tenant exercising legal rights: The landlord filed this eviction after I complained to the Jefferson County housing authority about the lack of heat.

## 9. File Online

You can submit this form to the court (*file*) and send it to the landlord (*service*) online at:

**Colorado Courts Efiling**

[[www.jbits.courts.state.co.us/efiling](http://www.jbits.courts.state.co.us/efiling)]

**Note** Not available for cases in Denver County Court.

## Fee Waivers

To waive court fees, submit forms *JDF 205 – Motion to Waive Fees* and *JDF 206 – Order*.

## 10. Certificate of Service

On (*enter service date*) 09/19/2026

I certify that I sent a copy of this document to the other parties by: (*select one*)

- ☐ Colorado Courts E-Filing. [[www.jbits.courts.state.co.us/efiling](http://www.jbits.courts.state.co.us/efiling)]
- ☒ Regular Mail, addressed to:  
*Name & full address:* Summit Ridge Property Management, LLC, 950 Wadsworth
- ☐ Other: (*explain*) \_\_\_\_\_

## 11. Tenant Signature

I declare under penalty of perjury under the law of Colorado that the foregoing is true and correct.

Executed on the (*date*) 19 day of (*month*) 9 (*year*) 2026  
at City: (*or other location*) Lakewood  
and State: (*or country*) CO

Print Your Name(s): John Doe

Your Signature(s): \_\_\_\_\_

Lawyer Signature: (*If any*) \_\_\_\_\_

**12. Additional Information** (if any)